

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/18/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L22-02131

CASE NAME: DISCOVER BANK VS. CHRISTOPHER PEANG

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT
PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT
FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a dismissal and enter judgment, on 2/18/26, which was originally scheduled to be heard on 6/2/26.

However, on 6/2/26, this court found that the copy of the agreement at issue, provided by Plaintiff as an exhibit attached to their Motion and also in court during the hearing, was not sufficiently legible. The court continued the matter to 8/18/26, 9am, and ordered Plaintiff to file a legible copy of the agreement.

That has not been done.

This court does not find sufficient evidence to rule on Plaintiff's behalf, given the evidence provided.

This court already gave the Plaintiff an opportunity to fix the problem; they chose not to avail themselves of that chance.

Disposition

Plaintiff's Motion is denied without prejudice.
Court to file Order.

2. 9:00 AM CASE NUMBER: L23-03444
CASE NAME: NAVY FEDERAL CREDIT UNION VS. TIMOTHY INGALLS
HEARING ON SUMMARY MOTION
FILED BY: NAVY FEDERAL CREDIT UNION

TENTATIVE RULING:

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed, and Plaintiff provided notice by mail at the address indicated in the order relieving counsel of the Defendant, filed on 2/20/24.

Background

The Complaint alleges a breach of contract as the sole cause of action, stemming from a personal loan.

On 12/2/25, the court granted Plaintiff’s motion to deem matters admitted (“Admitted Matters Order”), which admitted all the matters reflected in the 8/19/24 Declaration of Fahad Assad. The admitted matters reflect that, among other things, Defendant applied for a loan, borrowed against the loan by virtue of making third party purchases, and stopped making payments on this loan per the agreement. The agreement allowed for the recovery of attorney’s fees and costs by the Plaintiff.

The court takes judicial notice of the Admitted Matters Order, as well as the declaration and motion on which the Order was based.

Plaintiff also, in its moving papers, provided an itemized list of attorney’s fees and costs.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation*, *supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of

the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court finds that the Plaintiff has met its burden.

Also, the court finds that Plaintiff's claims for attorney's fees and costs are reasonable.

Disposition

The Court finds and orders as follows:

- 1. The MSJ is Granted, in the principal amount of \$6,093.50; \$1,050 for attorney's fees; and \$824.90 for costs.**
2. Defense to prepare the order after hearing and serve a copy of the filed order on Defendant.

3. 9:00 AM CASE NUMBER: L24-04331
CASE NAME: JPMORGAN CHASE BANK N.A. VS. JOSEPH BARRATT
*HEARING ON MOTION IN RE: MOTION FOR JUDGMENT ON THE PLEADINGS
FILED BY: JPMORGAN CHASE BANK N.A.
*TENTATIVE RULING

Plaintiff filed a Motion for Judgment on the Pleadings. The motion was timely served by mail on the address for Defendant provided in the Answer. The Motion is unopposed.

Background

On 3/25/25, the court granted Plaintiff's Motion to deem matters true those requested in Plaintiff's Request for Admissions. All requests for admission, provided in the motion filed 11/15/24, were deemed to be true by the court.

The court takes judicial notice of the Complaint, the court minutes reflecting the Order on the Motion to deem matters admitted, as well as the motion filed by Plaintiff on 11/15/24.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

Plaintiff's Complaint alleges Common Counts as the cause of action, based on the allegation that Defendant became indebted in the amount of 8,536.02, on a credit card account.

Defendant's Answer denies the allegations of the Complaint and states various affirmative defenses.

Later, Plaintiff filed a motion to deem the truth of matters admitted in a set of Request for Admissions (the "RFAs") served on Defendant which was granted by the Court. See

Minutes from 3/25/25 (the “Deemed Admitted Order”). The Court takes judicial notice of the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$8,536.02.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

4. 9:00 AM CASE NUMBER: L24-10399
CASE NAME: DISCOVER BANK VS. LUIS MUNOZ SARABIA
HEARING IN RE: MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION, MEMORANDUM OF POINTS AND AUTHORITIES AND DECLARATION OF COUNSEL FOR PLAINTIFF AND ITS ACCOMPANYING EXHIBITS
FILED BY:

TENTATIVE RULING:

Plaintiff filed this Motion on 2/5/26, which was originally scheduled to be heard on 5/19/26. However, on that day, this court found that Plaintiff failed to properly notify the Defendant, and continued the matter to 8/18/26, 9am. This court ordered Plaintiff to properly notify the Defendant.

Apparently, nothing has been done in that respect.

Disposition

This matter will be dropped.

5. 9:00 AM CASE NUMBER: L25-00293
CASE NAME: CROWN ASSET MANAGEMENT, LLC VS. HAROLD MOSES
***HEARING ON MOTION IN RE: TO VACATE DEFAULT JUDGMENT**
FILED BY: CROWN ASSET MANAGEMENT, LLC

TENTATIVE RULING:

Plaintiff filed a Motion to set aside the default judgment, contending that Defendant was not properly served with notice of process, under Section 473 of the CCP.

Disposition

The court grants this Motion under 473(d) of the CCP.

Plaintiff to file Order, and to serve notice of Order on Defendant.

Defendant to file Answer within 30 days of receipt of written notice of this Order.

6. 9:00 AM CASE NUMBER: L25-01000

CASE NAME: CAPITAL ONE N.A. VS. AURORA DIAZ

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,710.94, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$4,562.94.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$2,731.61.

Plaintiff to file order on Motion, as well as submit Judgment.

7. 9:00 AM CASE NUMBER: L25-02967

CASE NAME: CAPITAL ONE N.A. VS. LAURA ZEIDAN

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a Motion, on 5/12/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Mail service was completed at an address for the counsel of Defendant on 5/12/26.

Though counsel filed a notice of substitution of attorney on 5/22/26, there was ample time for counsel to receive notice of the Motion while counsel was still representing the Defendant. Thus, this court finds that Defendant received notice.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$10,227.22, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$523.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$10,750.83.

Plaintiff to file Order on Motion, as well as submit Judgment, and to serve Defendant with copy of filed Order.

8. 9:00 AM CASE NUMBER: L25-03662

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. DESMOND BURNS

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to set aside dismissal and enter judgment per agreement.

Plaintiff provided notice by mail service, but there is no evidence to corroborate that Defendant resides or receives mail at the particular address. Plaintiff never filed an Answer, and there is no proof of service of summons.

This court does not find that Plaintiff properly notified Defendant of this Motion.

Disposition

This Motion will be continued to 10/6/26, 9am.

Plaintiff to properly notify Defendant with copy of Motion and of hearing date.

9. 9:00 AM CASE NUMBER: L25-09717

CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. GENEVIEVE GARCIA

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL

FILED BY: GARCIA, GENEVIEVE E

TENTATIVE RULING:

Counsel for Defendant filed a Motion to be relieved as counsel. Counsel provided notice to his client.

The court reviewed the Declaration filed by counsel.

Disposition

Counsel's Motion is granted.

Counsel to file Order, and to serve copy of Order, as well notice of the next hearing, on the Defendant.

10. 9:00 AM CASE NUMBER: L25-12704

CASE NAME: CAPITAL ONE, N.A., SUCCESSOR BY MERGER TO DISCOVER BANK VS. ROLANDO SANCHEZ

*HEARING ON MOTION IN RE: NTC AND MTN TO QUASH SERVICE OF SUMMONS AND SET ASIDE DEFAULT AND DEFAULT JUDGMENT

FILED BY: SANCHEZ, ROLANDO

TENTATIVE RULING:

Defendant filed, on 5/27/26, a Motion to quash service of summons, and to set aside the default judgment.

Default was entered on 3/5/26. Default Judgment was filed on 7/30/26.

The Motion is unopposed.

Defendant filed a proof of service indicating mail service on counsel for Plaintiff.

Background

Defendant argues that he did not receive actual notice, and that the judgment should be set aside, under both Sections 473(d) and 473.5 of the CCP.

The proof of service of process, filed on 12/23/25, reflects personal service by a registered process server on 12/19/25, Oakley, CA. The document reflects that the Defendant was approximately 45, lightly complected, salt and pepper hair, and of medium height and slightly heavier weight.

The Defendant, in his Motion, claims that he was in Mexico on 12/19/25, and thus was not actually served. As proof, Defendant attached bank statements that purportedly show purchases made by him in Mexico on and around 12/19/25. Defendant also included an exhibit reflecting a plane ticket from Mexico to Oakland on 12/22/25.

The bank statement, however, does not have any information reflecting the owner of the account.

Defendant also points out that his skin complexion is dark and not light.

Analysis

A defendant can move to quash service of the summons if service of the service is not valid. *Code of Civil Procedure Section 418.10(a)(1)*. A defendant's actual knowledge of the action does not dispense with the statutory requirement of service of the summons. *Kappel v. Bartlett* (1988) 200 CA3d 1457, 1466.

When a defendant moves to quash the summons on the basis of invalid service, "[T]he burden is on the plaintiff to prove ... the fact requisite to an effective service." *Summers*

v. McClanahan (2006) 140 CA4th 403, 413.

A Defendant can also move the court to set aside a default judgment under Sections 473.5 and 473(d) of the Code of Civil Procedure, arguing a lack of actual notice under the former, and improper service in the latter.

However, service that is done by a registered process server raises a presumption of valid service, shifting the burden to the Defendant. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795.

In the instant matter, since a registered process service claimed to have effected personal service on Defendant, it is the Defendant's burden to show otherwise.

Disposition

The court will hear from the parties on 8/18/26, 9am.

11. 9:00 AM CASE NUMBER: L25-14084

CASE NAME: WELLS FARGO BANK, N.A. VS. MARCELO SANCHEZ

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), as well as a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely

response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

**12. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: ANSWER
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

The amended complaint and amended cross complaint have alleged damages of over \$35,000, and have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Partie are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

**13. 9:00 AM CASE NUMBER: L26-00496
CASE NAME: GVD RENOVATIONS, INC. VS. DOES 1-25
HEARING ON DEMURRER TO: CROSS COMPLAINT
FILED BY: GVD RENOVATIONS, INC.
*TENTATIVE RULING:***

he amended complaint and amended cross complaint have alleged damages of over \$35,000, and

have indicated that this case is an unlimited civil matter.

This case will be reclassified as unlimited civil.

Parties are to pay proper filing fees, after which the Court Clerk's Office will assign the matter to the unlimited civil department.

14. 9:00 AM CASE NUMBER: L26-01450
CASE NAME: BANK OF AMERICA N.A. VS. AMY NILSON
***HEARING ON MOTION IN RE: TO DISMISS COMPLAINT**
FILED BY: NILSON, AMY

TENTATIVE RULING:

Defendant filed a Demurrer to the Complaint, on 6/2/26, arguing, under Section 430.10(e) of the CCP, that the Complaint fails to state a cause of action because the debt at issue has been "charged off" by the Plaintiff.

The Demurrer is unopposed and there is proof of mail service of the Demurrer to Plaintiff.

The proof of service of summons in this case, filed on 3/19/26, reflects substitute service on 3/18/26.

Background

Defendant provides evidence of credit reports reflecting that Plaintiff purportedly "charged off" the debt at issue in this matter.

The Defendant argues that this shows the debt no longer exists and, as a result, there is no longer a claim against her.

Analysis

First, the deadline for a defendant to file a demurrer is 30 days from the receipt of the summons. (CCP 430.40). Defendant is well past that deadline with her demurrer.

Second, even assuming, arguendo, that her demurrer is timely, Defendant provides no authority for her claim. That her debt may have been "charged off" does not imply the debt no longer exists. She provides no evidence to support this other than a purported from the website of a credit reporting company and her own conjecture.

Disposition

Defendant's Demurrer is overruled.

Court to file the Order.

15. 9:00 AM CASE NUMBER: N26-1199
CASE NAME: TODD TEMPLETON VS. CALIFORNIA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: PETITION FOR WRIT OF MANDATE

FILED BY: TEMPLETON, TODD NICHOLAS

TENTATIVE RULING:

Petitioner has filed a Petition for Writ of Mandate, requesting this court to either direct Respondent to set aside a DMV order suspending Petitioner's driving license, or issue an order to show as to why the court should not take such action.

There is no evidence that Petitioner has provided notice of their Motion or the hearing to Respondent.

Background

The Petition challenges the results of a DMV administrative hearing, held on 4/24/26, in which a DMV employee, E. Nguyen ("Employee Nguyen"), considered evidence and issued a decision revoking Petitioner's driving license. The hearing centered on an incident in which Petitioner was alleged to have driven a car while under the influence of alcohol.

The Petitioner brings this Writ under CCP Section 1094.5, arguing that Employee Nguyen abused their discretion in rendering their decision, apparently because Respondent did not call any witnesses at the hearing, and instead, apparently, relied on documentary evidence.

Petitioner cites no authority as to why Employee Nguyen's use of such evidence constitutes an abuse of discretion, and makes no additional arguments concerning the manner in which Employee Nguyen abused their authority.

The Report of Employee Nguyen ("Report"), suggests that Employee Nguyen relied on the Arrest Report, DS-367, the Officer's Statement date 12/27/25, as well as, apparently, MVAR/BWC footage, in finding that: (1) There was Probable Cause that Petitioner was driving a vehicle; (2) Petitioner had objective symptoms of intoxication; (3) There was Reasonable Cause to believe that Petitioner was under the influence of alcohol while driving; (4) The officer Lawfully Arrested Petitioner; and, (5) That Petitioner was properly admonished about the chemical test and refused to take it upon request.

Petitioner attached the following exhibits to his Petition, in addition to the Report: Officers Statement (DS 367) and Police Report.

Petitioner made no mention of whether or not Employee Nguyen excluded any evidence from the hearing.

Analysis

Section 1094.5 of the CCP governs a trial court's review of the validity of an administrative decision. When a petitioner claims that the administrative arbiter abused their discretion in rendering their decision, subdivision (b) provides that such abuse is established "[i]f the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence." (CCP 1094.5(b).)

Subdivision (c) goes on to provide that, where the claim is that the decision was not supported by the evidence, the reviewing court resolves the question of whether the findings were either not

supported by the weight of the evidence, or by substantial evidence in light of the whole record, depending on whether or not review is de novo.

In the instant matter, the court finds that, though there is no notice to Respondent of this Petition, this court, given its ultimate ruling, finds no prejudice in addressing the Petition on its merits.

Turning the facts at issue, namely, the exhibits attached to the Petition, the statement and police report show that on 12/27/25, the officer found Petitioner trapped in an overturned vehicle. Petitioner was the sole occupant, possessed a strong odor of alcohol, had bloodshot and water eyes, and the officer observed four open containers of alcohol inside the vehicle (of high alcoholic content per volume).

Officer provided the chemical test admonition to the Petitioner, and the Petitioner remained silent.

The officer obtained blood draw warrant, and a phlebotomist withdrew blood samples.

Assuming that this court is employing an independent review in deciding whether or not there was an abuse of discretion, this court first finds that the findings are supported by the weight of the evidence. This evidence, as provided in the exhibits by the Petitioner, clearly shows that the Petitioner had objective symptoms of driving under the influence of alcohol, and that he refused to submit to a chemical test.

Next, in addressing the purported claim that Respondent conducted the hearing, or admitted evidence, improperly, because they did not call any witnesses at the hearing, this court is not aware of any authority prohibiting such action. The Petitioner certainly cites to no authority to support this argument.

Thus, this court finds that Respondent did not abuse their discretion in rendering their decision.

Disposition

Petition is denied.

Petitioner to file Order and serve copy of Order on Respondent.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: RS26-0279
CASE NAME: AGAPE ASSETS LLC VS WEST COAST AUTOMETRICS INC.
JURY TRIAL
FILED BY: AGAPE ASSETS LLC
TENTATIVE RULING: